

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 43-003
Amendment to Title 10 of the Chickasaw Nation Code
(Development Budget)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Governor Bill Anoatubby is authorized to enter into, negotiate, modify, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for the fiscal and financial controls regarding funds utilized and generated by the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 10, Chapter 1, Sections 10-101.4 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 10-101.4 **DEFINITIONS.**

For the purpose of this Act:

17. “Development Budget” shall mean a budget devised by the Governor for projects intended to develop tribal real property or develop Housing Projects as defined herein.

18. “Housing” or “Housing Project(s)” shall mean the construction or renovation of residential dwelling places, such as apartments, duplexes, townhouses or other single or multi-family homes and shall include all necessary items including but not limited to surveys, environmental assessments, architecture, design, and any and all ancillary items related to the development of residential Housing including but not limited to utilities, infrastructure, parking, lighting, fencing, landscaping, parks, and security.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 10, Chapter 2, Section 10-201.4 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 10-201.4 **DEVELOPMENT BUDGET.**

Projects intended to develop tribal real property shall be contained in a Development Budget, devised by the Governor and submitted to the Legislature apart and separate from the Consolidated Governmental Budget. The Governor may submit modifications or amendments as special need or circumstances dictate. **Projects intended to develop Housing that are not located on tribal real property may also be included in a Development Budget.**

1. The **Development** Budget shall include a scope of work and projected time frame for completion of any work involved, as well as justification for that work. An estimate of cost shall be provided for each project and shall be identified as to source of funding.

2. When the Legislature ~~shall have approved~~ the Development Budget **for projects intended to develop tribal real property**, the requirements of Section 18-~~100.6(B)~~ shall be deemed to have been met, and authorization shall be granted for the performance of activities and authorization for expending Funds to complete the projects identified in the Development Budget. Completion of a project may not be limited to a single fiscal year; approval of a project includes approval until such time as the project is completed. (PR35-002, 5/25/18)

3. **When the Legislature approves the Development Budget for Housing Projects that are not located on tribal real property the requirements of Section 10-201.1(A) shall be deemed met, and authorization shall be granted for the performance of activities and authorization for expending Funds to complete Housing Projects identified in the Development Budget. Completion of a Housing Project may not be limited to a single fiscal year; approval of a Housing Project includes approval until such time as the project is completed.**

~~34.~~ Total expenditures for any single project may not exceed 10% over the budgeted amount of that project; however, should it become apparent that completion of the project shall exceed such amount, the Governor shall submit a revised project budget to the Legislature for approval.

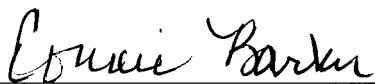
~~4-5.~~ A report of all ongoing projects approved in the Development Budget shall be provided to the Legislature by the Governor on a monthly basis. Such report shall include the status of each project, the status of each project budget's expenditures to-date and the balance of each project's allocated expenditure. As a project is completed, it shall be removed from that report; as new projects are added, they shall be included on the report to the Legislature.

~~56.~~ As a report indicates the completion of a project, the project shall be removed from the Development Budget. When a new project is proposed, the Governor shall submit a budget revision to the Legislature for its approval. Once approved, the new project will be added

to the Development Budget and, until the project's completion, its progress shall be reported monthly by the Governor to the Legislature. (PR22-019, 7/28/05; PR29-006, 8/17/12)

67. Buildings which are ancillary to a previously approved construction budget, including, but not limited to, buildings used for maintenance or storage, the funding for which is not deriving from the Development Budget and such building is less than one thousand square feet, shall not be subject to this Section. (PR36-009, 9/22/2019).

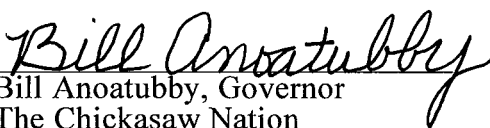
Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on March 20, 2026, by a vote of 13 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: MAR 23 2026
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation:

This Resolution amends certain provisions in Title 10, Chapters 1 and 2, adding Sections 10-101.4(17) and (18) and 10-201.4(3), adds definitions for “Development Budget” and “Housing Projects” and allows for Housing Projects that are not developed on tribal real property to be included in a Development Budget.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature